

Court No. - 21

Case :- WRIT - C No. - 10205 of 2022

Petitioner :- Balendra Singh

Respondent :- State Of U P And 4 Others

Counsel for Petitioner :- Virpratap Singh

Counsel for Respondent :- C.S.C.,Gaurav Singh,Krishna Agarawal

Hon'ble Manoj Kumar Gupta,J.

Hon'ble Dr. Yogendra Kumar Srivastava,J.

Since recovery proceeding is under challenge, let the matter be placed before appropriate Bench dealing with such matters as a fresh case on 13.07.2022.

(Dr. Y.K. Srivastava, J.) (Manoj Kumar Gupta, J.)

Order Date :- 5.7.2022

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Court No. - 3

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Respondent :- State Of U P And 4 Others

Counsel for Petitioner :- Virpratap Singh

Counsel for Respondent :- C.S.C.,Gaurav Singh,Krishna Agarawal

Hon'ble Surya Prakash Kesarwani,J.

Hon'ble Chandra Kumar Rai,J.

Heard learned counsels for the parties.

This writ petition has been filed praying for the following reliefs:

"(i) Issue a writ, order or direction in the nature of certiorari to quash the citation notice dated 12.11.2021 issued by Tehsildar Hamirpur, District Hamirpur.

(ii) Issue a writ, order or direction in the nature of mandamus commanding the respondent no.4 to decide the representation dated 12.01.2021 sent by petitioner through registered post in accordance with law."

Learned counsel for the respondent/ Power Distribution Corporation, states on instructions that the petitioner may file objection against the impugned demand which shall be decided in accordance with law within a time bound period.

In view of the aforesaid and without expressing any opinion on merits of the case of the petitioner, this **writ petition is disposed off** giving liberty to the petitioner to submit his/ her objection under **Para 6.5 of U.P. Electricity Supply Code, 2005** before the respondent No.4, within four weeks from today along with a certified copy of this order. In the event such an objection is submitted within the stipulated period, it shall be decided by the respondent No.4 in accordance with law within next four weeks, after affording reasonable opportunity of hearing to the petitioner.

For a period of eight weeks or till disposal of the objection of the petitioner, whichever is earlier, no coercive action shall be taken against the petitioner in pursuance of the impugned demand.

Order Date :- 19.7.2022/vkg